Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Commissioner Sharon M Anderson
Temporary Judge Catherine Evans

Date: 08/05/2026

Court Room Rules and Notices

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#	Case Name	Tentative
1	**Harper – Trust; 30-2025-01466038**	**Motion for Preliminary Injunction** Petitioner Kent Harper’s Motion for Preliminary Injunction Freezing the Assets of the Trust (ROA 22) is **GRANTED**. Pursuant to Code of Civil Procedure section 526, Petitioner seeks a preliminary injunction preventing Respondent Kirk E. Harper, trustee of The Stephany A. Harper Trust dated May 12, 2011 (Trust), from expending trust funds to litigate this matter. “[T]he question whether a preliminary injunction should be granted involves two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief.” ((*White v. Davis* (2003) 30 Cal.4th 528, 554.) “An order granting or denying a preliminary injunction is not a dispositive ruling adjudicating the rights of the parties. ‘“It merely determines that the court, balancing the respective equities of the parties, concludes that, pending a trial on the merits, the [respondent] should or . . . should not be restrained from exercising the right claimed by him [or her].”’” (*Santa Clara Water District v. Eisenberg* (2026) 117 Cal.App.5th 714, 727.) The question here is whether Respondent, as trustee, is entitled to use trust funds to pay for his defense in this litigation. Article VI of the Trust (ROA 35, Exhibit 1) identifies the specific powers

		given to the trustee: power to invest; power to loan to, buy from or sell to the Trust; power to borrow money and encumber Trust assets; and power to administer the Trust's real estate. The power to fund litigation is not included as a specific power. According to the preliminary paragraph of Article VI, the specific powers set forth are granted in addition to any powers conferred by law. Respondent seems to suggest Probate Code section 16004.5 gives him the power to maintain a litigation reserve. However, the reserve authorized by section 16004.5(b)(a) is for "taxes, debts, trustee and accounting fees, and costs and expenses of ***administration***" not for litigation. Probate Code section 16247 empowers a trustee to hire attorneys to "advise or assist the trustee in the performance of ***administrative*** duties." Litigation is not an administrative power. In the absence of a trust provision specifically to the contrary, a trustee is not entitled to utilize trust funds to defend litigation when, as here, the dispute is "'over who will enjoy the benefits and who will control the trust.'" (*Zahnleuter v. Mueller* (2023) 88 Cal.App.5th 474, 484.) Because the Trust does not grant Respondent the power to use Trust funds for this litigation and pursuant to Probate Code section 17206, the motion is **GRANTED.** Petitioner is directed to give notice.
2	**Mills – Conservatorship; 30-2024-01388539**	**Motion for Attorney Fees** Petitioner Zachary Tyler Mills's unopposed Motion for Payment of Family Law Attorney's Fees and Costs Pursuant to Probate Code § 2440(a)(4) is **GRANTED** in the amount of $15,000.
3	**Hernandez – Trust; 30-2022-01266339**	**Motion for Attorney Fees**

		CONTINUED to 08/25/26 at 10:00 am in Dept CM08.
4	**DSP/DNS – Trust; 30-2021-01197719**	**Demurrer** Respondent Brad Perrin's Demurrer to Post-Trial Petition (ROA 478) is **OVERRULED**. Respondent's Requests for Judicial Notice (ROAs 482 & 489) are **GRANTED** as to Exhibits 1, 2, and 3. **I. RELEVANT PROCEDURAL HISTORY** This action arises out of David Perrin's (Decedent) estate planning, including the creation of the DSP Trust dated August 29, 2985 and Restated on February 3, 2015 (DSP Trust). On March 30, 2021, Brad Perrin (Perrin), Decedent's son and trustee of the DSP Trust, filed a petition against Sarah Jo Renner (Renner) relating to the DSP Trust. Perrin's petition alleged Renner had committed financial elder abuse against Decedent, including an allegation (at ¶¶ 55-58) that Renner fraudulently and through undue influence procured a written $1,000,000 distribution from the DSP Trust. (ROA 2 at 11:6-26.) Perrin sought a "determination that [Renner] take nothing from any testamentary documents that may have been executed by [Decedent] or from his Estate." (ROA 2 at 13:23-24.) On October 25, 1995, Renner filed a verified answer (ROA 15) denying the allegations. (ROA 15.) On April 29, 2022, Renner filed a cross-complaint alleging, among other things, she had been named as a beneficiary on a life insurance policy taken out by Decedent in the amount of $500,000 but Perrin had fraudulently altered the policy to name himself as beneficiary. On May 2, 2024, Perrin and Renner filed a joint list of controverted issues in connection with an upcoming trial date. (ROA 162.) In relevant part, the list identified the $1,000,000 pecuniary gift as one of the controverted issues including, specifically, whether Perrin "is required to

distribute to Renner a pecuniary distribution from the DSP Trust of $1,000,000 pursuant to the Memorandum of Distribution." (ROA 162 at 3:17-27, quoted portion at 13: 25-27.)

On July 1, 2025, Perrin voluntarily dismissed his petition without prejudice. (ROA 286.)

Renner's Cross-complaint proceeded to trial in September 2025 solely on Renner's claim of entitlement to the $500,000 life insurance policy. (ROA 415.) On December 31, 2025, the court issued its final statement of decision on the insurance policy claim, finding against Renner. (ROA 415.)

On October 2, 2025—after trial on the life insurance policy issue had concluded but before the court had issued its final statement of decision—Renner filed a Petition for Instructions (Petition, ROA 390). The Petition alleges Renner is entitled to the $1,000,000 gift that was the subject of Perrin's now-dismissed petition. The Petition asserts three causes of action: (1) Declaratory Relief (seeking an order declaring Renner to be a beneficiary of the DSP Trust); (2) Order Compelling Trustee to Distribute Trust Gift (of the $1,00,000); and (3) Breach of Fiduciary Duty.

II. DEMURRER

Perrin demurs to the Petition and each cause of action therein on the following grounds: (1) Renner lacks standing because she is not a beneficiary of the DSP Trust and her stipulations of fact in connection with the trial on the insurance claim confirm her lack of standing; (2) the claims are time-barred by Code of Civil Procedure sections 366.2 and 366.3; (3) the Petition is time-barred because it had to have been brought as a compulsory cross-complaint to Perrin's petition; and (4) the claims are barred by the doctrines of claim and issue preclusion.

A demurrer can be used only to challenge defects that appear on the face of the petition or from matters outside the pleading that are judicially noticeable. [Citations.] 'To survive a demurrer, the [petition] need only allege facts sufficient to state a cause of action.' [Citation.] The demurrer admits the truth of all material facts properly pleaded, including all ultimate facts alleged, but not contentions, deductions or conclusions of fact or

		law." (*Simple Avo Paradise Ranch, LLC v. Southern California Edison Co.* (2024) 102 Cal.App.5th 281, 298–299.) **A. Standing** Perrin demurs to the Petition on the ground Renner lacks standing to pursue any of the claims because she is not a beneficiary under the terms of the DSP Trust. The Petition alleges Renner is a beneficiary of the DPS Trust based on a "Distribution of Pecuniary Amounts from the DSP Trust for David Perrin" executed by Decedent on November 1, 2017 (Distribution). (ROA 472, Exhibit G.) The Distribution stated Renner was to receive $1,000,000 from the DSP Trust. (*Id.*) The Petition alleges the Distribution was made pursuant to an enabling clause included in the 1st, 2nd, 3rd, and 4th amendments to the DSP Trust. (ROA 390 at 3:27-5:20.) The Petition acknowledges that, after the Distribution was executed, a 5th amendment to the DSP Trust does not include the enabling clause. (ROA 390 at 5:21-24.) The Petition alleges, however, Decedent confirmed the $1,000,000 gift, verbally and in writing, that after the 5th amendment was executed. (ROA 390 at 5:25-6:28.) Citing only Probate Code section 16002(a), Perrin asserts the elimination of the enabling clause in the 5th amendment must be interpreted as eliminating the then-existing Distribution, thereby foreclosing Renner's claim to be a beneficiary. However, section 16002(a), which reads: "The trustee has a duty to administer the trust *solely* in the interest of the beneficiaries" does not provide any direction as to the effect of the 5th amendment's language or how it should be interpreted. "The primary duty of a court in construing a trust is to give effect to the settlor's intentions." (*Barefoot v. Jennings* (2020) 8 Cal.5th 822, 826.) Renner alleges Decedent's intent is shown in the Distribution and subsequent alleged oral and written affirmations of the Distribution. Perrin argues Decedent's intent is shown in the 5th amendment's amendment, which does not include the enabling clause. Looking solely at the Petition, including a review of the language of the Trust, the five amendments, and the Distribution as well as the allegation that Decedent confirmed his intention to give Renner $1,000,000 from the DSP

		Trust, the court cannot determine Decedent's intent as a matter of law. Renner's stipulation that the DSP Trust and its amendments are valid does not change anything. She does not deny the validity of the 5th amendment. Rather, she argues a different interpretation and effect than that offered by Perrin. The question of Decedent's intent remains, at this point in the proceeding, a question of fact. The demurrer is **OVERRULED** on this ground. **B. Time-Bar** Perrin demurs to the Petition on the ground it was not filed within a year of Decedent's death and argues it is, therefore, time-barred under Code of Civil Procedures sections 366.2 and 366.3. Section 366.2 "specifically contemplates an action that may be brought against a person prior to his or her death. (*Sefton v. Sefton* (2012) 206 Cal.App.4th 875, 894.) Renner's Petition does not state a claim against Decedent. Accordingly, the section does not bar Renner's claims, which are stated against Perrin and the DSP Trust. Section 366.3, which "applies to claims based on promises or agreements to create an instrument that will effectuate a distribution from the property of a decedent, rather than to claims based solely on the instrument effectuating the distribution (*Smith v. Myers* (2024) 103 Cal.App.5th 586, 593–594 (*Smith*)) also does not apply. As the court explained in *Smith* at p. 594: "the statute contemplates a scenario in which a decedent had made an agreement with (or promise to) the claimant to execute a will, create a trust document, or prepare another instrument that would make the claimant a beneficiary upon the decedent's death. The claim at issue would then be one to enforce that promise or agreement, regardless of what the will, trust, or other instruments designating a decedent's beneficiaries say." By her Petition, Renner seeks a distribution under the terms of the DSP Trust, not under a promise to create a document. Further, even if section 366.3 applied, the statute would arguably have been tolled during the period of Perrin's petition, which raised the very issue Renner now seeks to have tried. (ROA 2 at 6:11-

18.) "[E]quitable tolling today applies when three 'elements' are present: '[(1)] timely notice, and [(2)] lack of prejudice, to the defendant, and [(3)] reasonable and good faith conduct on the part of the plaintiff.'" (*Saint Francis Memorial Hospital v. State Dept. of Public Health* (2020) 9 Cal.5th 710, 724.) There is, at minimum, a question of fact as to whether the statute was equitably tolled from March 30, 2021 when Perrin filed his petition through July 1, 2025 when he dismissed his petition. According to the allegations of the Petition, Decedent died on March 4, 2021—26 days before Perrin filed his petition. Renner's Petition was filed on October 2, 2025—93 days later. The total of 119 days is well within the one-year statute of limitations.

"'A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.'" (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 342.) The alleged statute of limitations bar does not clearly and affirmatively appear on the face of the Petition.

The demurrer is **OVERRULED** on this ground.

C. Compulsory cross-complaint

Perrin argues the Petition raises a claim, i.e., the claim to the Distribution, that could only be asserted as a compulsory cross-complaint to his petition under Code of Civil Procedure section 426.30(a). Section 426.30 does not apply to special proceedings. (Code of Civ. Proc., § 426.60(a) ["This article applies only to civil actions and does not apply to special proceedings"].) Probate proceedings are "special proceedings." (*Coberly v. Superior Court* (1965) 231 Cal.App.2d 685, 690["Probate matters fall within the category of special proceedings"].) Perrin's initial petition alleged probate claims and was conducted in probate court. Accordingly, section 426.30 does not apply.

The demurrer is **OVERRULED** on this ground.

D. Issue and Claim Preclusion

Finally, Perrin argues the Petition is barred by the doctrines of claim and issue preclusion. "Claim preclusion prevents relitigation of entire causes of action. [Citation.] It applies only when 'a second suit involves (1) the same cause of action (2) between the same parties [or their privies] (3) after a final judgment on the merits in the first suit.'" (*Samara v. Matar* (2018) 5 Cal.5th 322, 326–327.) For claim preclusion purposes, "a 'cause of action' is comprised of a primary right possessed by the plaintiff, a corresponding duty imposed upon the defendant, and a wrong done by the defendant which is a breach of such primary right and duty. The primary right is the plaintiff's right to be free of the particular injury, regardless of the legal theory on which liability is premised or the remedy which is sought. Thus, it is the harm suffered that is the significant factor in defining the primary right at issue." (*City of Oakland v. Oakland Policy & Fire Retirement System* (2014) 224 Cal.App.4th 210, 228.) Perrin argues the primary right was "Renner's right to receive any distribution from Decedent's estate and trust" and asserts that primary right was determined in the first trial. However, the final statement of decision issued by the court did not address the $1,000,000 Distribution (which was dismissed when Perrin dismissed his petition). The trial and the statement of decision were limited to the issue of the $500,000 insurance policy. Accordingly, the doctrine of claim preclusion does not apply.

The doctrine of issue preclusion applies "(1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party." (*DKN Holdings LLC v. Faerber* (2015) 61 Cal.4th 813, 825.) "'[A]n issue was actually litigated in a prior proceeding if it was properly raised, submitted for determination, and determined in that proceeding.'" (*In re Marriage of Brubaker & Strum* (2021) 73 Cal.App.5th 525, 537.) The issue of the $1,000,000 pecuniary gift through the Trust was not raised, actually litigated or necessarily decided in connection with the prior trial and the doctrine of issue preclusion does not apply.

The demurrer is **OVERRULED** on this ground.

Petitioner is directed to give notice.

5	**Collins – Trust;** **30-2024-01430606**	**Motion to Compel** *CONTINUED to 11/18/2026 at 09:00 AM in Department CM08*
6	**Miller – Trust;** **30-2025-01511291**	**Demurrer** **Motion to Strike** Trustee Paul Miller's Demurrer to Petitioner Heather Dye's Petition for: 1) Order Compelling Trustee to Account; 2) Removal and/or Suspension of Trustee; (3) Redress of Trustee Breaches; 4) Order Appointing Successor Trustee; 5) Disallowance of Fees; and 6) Attorney Fees and Cost (ROA 12) is **OVERRULED.** Trustee Paul Miller's Motion to Strike Petitioner Heather Dye's Petition for: 1) Order Compelling Trustee to Account; 2) Removal and/or Suspension of Trustee; (3) Redress of Trustee Breaches; 4) Order Appointing Successor Trustee; 5) Disallowance of Fees; and 6) Attorney Fees and Cost (ROA 15) is **DENIED.** **I. PETITION** On September 12, 2025, Heather Dye (Petitioner) filed a petition (Petition) arising out of the Revocable Trust Agreement of Miller Living Trust Dated April 18, 2013 (Trust) created by her mother Joann Miller (Decedent). According to the Petition, Decedent had four children, Petitioner, Respondent Paul Miller (Respondent), Donald Joseph Lawrence Miller, and Danny Miller, each of whom was a beneficiary of the Trust. Petitioner alleges Decedent became incapacitated in 2018 and Respondent took over as trustee of the Trust under a Durable Power of Attorney (DPOA). She asserts that between the time he took over as trustee and Decedent's passing in February 2025, Respondent harmed the beneficial interests of the beneficiaries by wasting Trust assets

through his improper care of Decedent and failing to collect rental income from Trust property as required by the Trust. Petitioner also alleges Respondent's improper care of Decedent contributed to and hastened the deterioration of Decedent's health.

Based on these allegations, Petitioner seeks: (1) an order compelling Respondent to provide an accounting for the period of 2018 through Decedent's passing and thereafter; (2) removal or suspension of Respondent as trustee; (3) an award of damages Respondent's alleged breach of fiduciary duty; (4) an order appointing a successor trustee; (5) an order prohibiting Respondent from receiving compensation for his services as trustee; and (6) an award of fees and costs.

II. DEMURRER

Respondent demurs to the request for an accounting on the ground that Petitioner, as a beneficiary of a revocable trust, is not entitled to any accounting for the period preceding Decedent's death and, further, that any claim for a pre-death accounting would be time-barred under Probate Code section 16460 and/or barred by the doctrine of laches. He argues her request for an accounting following Decedent's death was premature at the time it was made and is now moot because, after the Petition was filed, Respondent filed an accounting (ROA 23).

Respondent demurs to the breach of trust claim on the ground that the Petition acknowledges the Trust funds were spent on Decedent's care and, accordingly, could not be a breach of trust. He also argues the breach of trust claim fails to the extent it is based on his alleged failure to provide an accounting.

Respondent demurs to the remaining claims and requests for relief on the ground they flow from the request for an accounting and claim for breach of trust and must fails because those claims must fail.

A. Request for an Accounting

Petitioner seeks an order compelling Respondent to provide an accounting from December 3, 2018 through the present. Respondent's demurrer splits the request for an accounting into two, separate claims—a claim for a pre-death accounting and a claim for a post-death accounting. "[A] party may not demur to a portion of a cause of action." (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1681.) Accordingly, so long as Petitioner sufficiently states a claim to an accounting in any respect, the demurrer must be overruled.

Petitioner, as a beneficiary, is entitled to accountings following Decedent's death. Respondent argues Petitioner's request for an accounting during the post-death period was premature when made and is now moot because he filed an accounting on April 9, 2026. That accounting covered the period February 12, 2025 (date of Decedent's death) through February 12, 2026. Respondent is still trustee, however, and his duty to account has continued beyond February 12, 2026. Accordingly, Petitioner's request for an accounting is sufficient to state a claim at this pleading stage.

Respondent's demurrer to the request for an accounting is **OVERRULED**.

B. Breach of Trust Claim

Respondent demurs to Petitioner's breach of trust claim on the ground the Petition "acknowledges that Trustee used the Trust funds solely for Trustor's care – which is not a breach of fiduciary duty." That argument misstates the allegations of the Petition, which asserts Respondent "wasted Trust assets by neglecting and improperly caring for [Decedent]," "Respondent's waste harmed the Trust's beneficiaries by depleting the Trust's liquid estates," "Respondent also failed to collect rental income for the Trust's beneficiaries as required by the mandatory language of [the Trust]," "Respondent mismanaged [Decedent's] assets by using Trust assets for improper and harmful medical treatment/healthcare." (ROA 2 at 3:20-25, see also 5:4-9, emphasis deleted.) Petitioner also alleges Trustee breached his duty to keep Petitioner informed after Decedent died. (ROA 2 at 14:24-15:15.)

The allegations are sufficient to state a breach of trust claim and the demurrer is **OVERRULED**.

C. Remaining Requests and Claims

Respondent argues the remaining requests and claims fails because they are based on the request for an accounting and breach of trust claim. Because those claims are sufficient at this pleading stage, Respondent's demurrer to the remaining claims is **OVERRULED**.

III. MOTION TO STRIKE

Pursuant to Code of Civil Procedure section 436, Respondent moves to strike the entire Petition on the ground the allegations therein are "not only false but irrelevant and improper as to the stated causes of action and demands for relief."

Code of Civil Procedure section 436 reads, in full:

> The court ***may***, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: [¶] (a) Strike out any irrelevant, false, or improper matter inserted in any ***pleading***. [¶] (b) Strike out all or any part of any ***pleading*** not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(Emphasis added.)

For purpose of § 436, "pleading" is defined as a "demurrer, answer, complaint, or cross-complaint." (Code of Civ. Proc., § 435(a)(2).) A petition is not one of the pleadings subject to a motion to strike.

Even if a motion to strike could be directed at a petition, this motion would fail. A motion to strike under § 436 is authorized in two situations. First, under subdivision (a), a party may seek to strike "irrelevant, false, or improper matter." Respondent attacks the entire Petition, not just the allegedly irrelevant, false, or improper allegations. "[The] purpose [of Section 435(a)] is to authorize the excision of superfluous or abusive allegations. '[M]atter that is essential to a cause of action should not be struck and it is error to do so.'" (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528.)

		Second, under subdivision (b), a party may seek to strike a pleading that is "not in conformity" with the law. "While this language might be broadly construed to reach *any* deficiency in a pleading, including substantive ones, that is not its purpose or effect. Rather it authorizes the striking of a pleading due to improprieties in its *form* or in the *procedures* pursuant to which it was filed. This provision is commonly invoked to challenge pleadings filed in violation of a deadline, court order, or requirement of prior leave of court." (*Ferraro, supra,* 161 Cal.App.4th at p. 528.) Respondent's motion to strike is not based on improprieties in form or procedures. Finally, use of motions to strike "should be cautious and sparing." (*PH III Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.) The motion to strike is **DENIED**. Petitioner is directed to give notice.
7	**Watton – Trust; 30-2023-01325567**	**Motion to Be Relieved as Counsel** Messina & Hankin, LLP's Motion to Be Relieved as Counsel for Stephen Watton (ROA 176) is **GRANTED.** The court will sign the Proposed Order. Moving counsel is **ORDERED** to give notice to all parties to this action and file proof of service of the court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
8	**Anderson/Callahan – Trust; 30-2024-01389721**	**Motion for Summary Judgment** *At the request of Mr. Anderson, the Motion for Summary Judgment set for 8/5/2026 and 8/19/2026 at 9:00 AM in Department*

		CM08 are ordered advanced, vacated and dismissed without prejudice.
9	**Ravera – Conservatorship 30-2020-01139584**	**Motion for Order to Enjoin Conservator Amy Ravera From Withholding Hydration and Nutrition**
10	**Redman – Trust; 30-2019-01049560**	**Motion Requesting a Trial Setting Conference After Issuance of Remittitur** Petitioners Jason Vanier and Eric Vanier's Motion Requesting a Trial Setting Conference after Issuance of Remittitur (ROA 271) is **DENIED** as moot. The motion asks the court to calendar a Trial Setting Conference following remittitur. On July 7, 2026, the court scheduled a hearing on the Petition and Objection for August 11, 2026 at 9:00 a.m. in Department CM03. (ROA 268.) That hearing returns this matter to the court's calendar following the appeal and, at the hearing, the court will address the status and future of the proceeding including its readiness for trial, making this motion moot. Moving party to give notice.